

LAW AND MOTION TENTATIVE RULINGS
DATE: SEPTEMBER 22, 2026 TIME: 8:30 A.M.

TENTATIVE RULINGS ARE NOT POSTED IN UNLAWFUL DETAINER CASES

Notice to prevailing parties: Local Rule 2.10.01 requires you to submit a proposed formal order incorporating, verbatim, the language of any tentative ruling – or attaching and incorporating the tentative by reference - or an order consistent with the announced ruling of the Court, in accordance with California Rule of Court 3.1312. **Such proposed order is required even if the prevailing party submitted a proposed order prior to the hearing with two exceptions: (1) in unopposed matters where the moving party has provided a detailed proposed order or JCC form of order, or (2) where the tentative is simply to “grant”.** Failure to comply with Local Rule 2.10.01 may result in the imposition of sanctions following an order to show cause hearing, if a proposed order is not timely filed.

No. 25CV03943

DEPENAU v. BARNES et al.

**DEFENDANTS MILESTONE FINANCIAL, LLC AND WILLIAM STUART’S
DEMURRER AND MOTION TO STRIKE SUPPLEMENTAL COMPLAINT**

The demurrer is overruled and the motion to strike is denied. However, considering plaintiff’s acknowledgement that discovery has made further amendment necessary, the Court orders plaintiff to file a first amended complaint that consolidates his original allegations, the completed foreclosure, and newly discovered facts. That new pleading shall be filed no later than October 23, 2026.

Plaintiff Paul Depenau, through his guardian ad litem and sister Judy Depenau, asserts he was the victim of a fraudulent loan transaction. He is 68 years old with alleged dementia and reduced or diminished cognitive capacity. He owns a home in Boulder Creek. In August 2024, defendants Milestone Financial, LLC dba MERS Link 4 (lender) and Levy Barnes and Mortgage Dynamics (broker) arranged a \$115,000.00 business purpose loan secured by Depenau’s residence. Depenau asserts that he was not involved in the loan transaction but that his stepdaughter, Angela Newton, “acting without authority and for her own benefit, used Paul’s [Depenau’s] home and signature to obtain funds she kept for herself. Paul had no business, no knowledge of the loan, and no capacity to consent.” (Compl. at ¶ 3.) The complaint, filed December 9, 2025, alleges causes of action for financial elder abuse, breach of fiduciary duty, and declaratory relief related to the loan.

Plaintiff filed a supplemental complaint alleging that defendants proceeded with a non-judicial foreclosure of the residence in February 2026, despite the earlier complaint and his

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counsel's clear communications that the loan was the product of elder financial abuse. The supplemental complaint pled causes of action for financial elder abuse, wrongful foreclosure, quiet title, and cancellation of the trustee's deed.

Defendants demur and move to strike the supplemental complaint on the grounds that such a pleading cannot allege new facts or causes of action and must only supplement the claims already pled. Plaintiff argues that is what the supplemental complaint does, but that now, months after the supplemental complaint was filed and the parties have conducted discovery, the better course of action would be to allow amendment so that all relevant allegations could be made in a single pleading.

The Court agrees and permits the filing of a first amended complaint. It is clear that the foreclosure is directly related to the earlier allegations, that it forms new alleged harms, and that permitting amendment furthers the strong policy favoring trial of a case on its merits. Courts are bound to apply a policy of great liberality in permitting amendments to the complaint at any stage of the proceedings, up to and including trial, absent prejudice to the adverse party. (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761; *Morgan v. Superior Court* (1959) 172 Cal.App.2d 527, 530.)

Defendants' requests for judicial notice of Exhibits 1 and 2 are denied; the Court need not take judicial notice of its own records. Defendants' request for judicial notice of Exhibit 3, recorded trust deed, is granted.

No. 24CV01985

STRATTON v. STATE FARM GENERAL INS. CO., et al

DEFENDANT STATE FARM GENERAL INSURANCE COMPANY'S MOTION TO COMPEL PLAINTIFF LESLIE BLYTHE STRATTON TO PROVIDE FURTHER DISCOVERY RESPONSES AND MOTION TO COMPEL COMPLIANCE AND ORDER PLAINTIFF TO PRODUCE DOCUMENTS IN RESPONSE TO DEFENDANT'S REQUEST FOR PRODUCTION, SET TWO; SPECIAL INTERROGATORIES, SET TWO; AND REQUESTS FOR ADMISSION, SET TWO

DEFENDANT STATE FARM GENERAL INSURANCE COMPANY'S MOTION TO COMPEL PLAINTIFF ERICK REYES TO PROVIDE FURTHER DISCOVERY RESPONSES AND MOTION TO COMPEL COMPLIANCE AND ORDER PLAINTIFF TO PRODUCE DOCUMENTS IN RESPONSE TO DEFENDANT'S REQUEST FOR PRODUCTION, SET TWO; SPECIAL